7/8/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: July 8, 2025, at 6 p.m.

LOCATION: Cortlandt Town Hall
1 Heady Street
Cortlandt, New York 10567

BEFORE: ALJ JAMES COSTELLO
ALJ NICHOLAS PLANTY

Reported by John Sheffield

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(The hearing commenced at 6:04 p.m.)

A.L.J. COSTELLO: I call case number 25-E-0072, proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Consolidated Edison Company of New York, Inc. for electric service and case number 25-G-0073, proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Consolidated Edison Company of New York, Inc. for gas service.

Good evening, everybody. My name is James Costello. With me is Nicholas Planty, and we are both Administrative Law Judges with the Department of Public Service, and we are two of the three administrative law judges who have been assigned to these cases and we will preside over these public state hearings.

The public state hearings will be held on behalf of the New York State Public Service Commission regarding proposed changes in the electric and gas delivery rates and practices of the Consolidated Edison Company of New York.

Just so to make it clear, we are

employees of the Department of Public Service. We are not here on behalf of the Consolidated Edison Company.

Well, since we have a small turnout at this point, what I wanted to do is start up with the one person registered to speak. So I'm going to go and call that person up to make a statement, and then I'm going to go off the record for a while to see if anybody else comes forward that wants to make a statement.

So with that, we're going to start with Cora Impenna. I'll ask you to state your name, and just spell your name for the court reporter.

MS. IMPENNA: My name is C-O-R-A I-M-P-E-N-N-A.

A.L.J. COSTELLO: C-O-R-A, and the last name?

MS. IMPENNA: I-M-P-E-N-N-A.

THE JUDGE: Oh, thank you.

MS. IMPENNA: No problem. So I have an email about this hearing and some subsequent hearings from our rep, Dana Levenberg, and I just wanted to say probably what a lot of people are

feeling. They feel like coming in and saying, how am I trying to get help for myself at this point? Our rates are already going up. I came in with the balanced budgeting version because I couldn't afford it otherwise, because the rates, you know, obviously are higher at different times and lower at different times when the usage is different. But it's still going up and it's becoming unaffordable. And what's really confusing to me is that my use is not going up at all. My use is going to get lower. I've been a lot more careful about not using AC. We're always going to try and limit our use between the peak hours before 8. The conservation energy reminders, I forgot what I signed up for, but, you know, that's pretty cool. I'm doing all the things I can do. I can't do any more. We unplug everything. I know that energy wise, you know, they say, you know, our usage is better than most efficient homes in the neighborhood. We can't do anything more to lower our energy. And so it's going up and up and up.

I think it went up, last time it was 171. This morning it dropped down a little to 111. That's still about, I think, $30 higher than it had

been before, and I don't know what else to expect even now. Even the balance bill, to have it swing $60, it's just not affordable. And on top of that, when I look at my supply charges versus my delivery charges, my supply charges are $26. My delivery charges are almost $50. I can't do anything about that. Consumers, as well, are very careful. You know, what do they expect homeowners and families to do? And that's all they do.

A.L.J. COSTELLO: Thank you for your comment. So what we're going to do is, I'm going to go off the record. We're going to keep the proceeding open, and I'll go back on the record around 6:25, 6:30.

(Off the record)

(On the record)

A.L.J. COSTELLO: And during the time that we were off the record, we've had two more people that have signed up to make statements.

Before I call on the next person, I just briefly want to say that under New York State law, the Public Service Commission is the entity that must consider Con Edison's rate proposals, and it may

adopt or reject them in whole or in part or may modify them. In making this decision, the Commission will consider the evidentiary record that's made in these cases, as well as the comments made at this and other public statement hearings.

The Public Service Commission has seven members. That's the chairperson, Rory Christian, and six commissioners, James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova. And this evening, we're lucky to have with us Commissioner Sheehan. And, yes, Commissioner Sheehan, would you like to make your statement?

COMMISSIONER SHEEHAN: Thank you, Judge. Good evening. My name is Denise Sheehan, and I'm a Commissioner on the Public Service Commission. I'm one of seven commissioners, as you heard the judge say, and our role this evening will be to basically make the final decision. So we are attending hearings across Con Ed's territory to hear from residents and rate payers on the potential impacts of the rate case.

I do want to just thank folks for

taking the time to be here. We had a hearing earlier today at 1 o'clock, but there were obviously more people at that one. There's also another hearing happening today in New York State in Manhattan, so there's plenty of opportunity to comment. I want to just note that public participation is a vital part of this, of the rating process.

If folks who are here are aware of people who are interested in commenting and couldn't make it for whatever reason, there are additional hearings throughout Con Ed territory. There's a list of those up here on the desk, and there's also instant written comments. So we take this part of the process very seriously, and we want to see robust participation.

For the folks who have taken the time to be here, I just want to thank you for that, and I appreciate your time and your consideration. Thank you.

A.L.J. COSTELLO: Thank you, Commissioner. So the purpose of the hearing today is to hear comments from you for the Commission's consideration on Con Edison's rate proposals. If

anybody has any specific issues they have with their (indiscernible). And there is information that the company has made available on a table outside of this room for you to contact by phone or by e-mail. Customer representatives will help you with those issues. But the purpose of being here this evening is to provide comments for the Commission's consideration on the rate proposals.

So with that, I'll go to our next speaker, who is, and I apologize if I don't say it correctly, Emily -- could you please say your name?

MS. ULAJ: Sure. Emiljana Ulaj, E-M-I-L-J-A-N-A U-L-A-J. I am honored to serve as a Westchester County legislator for District 9, which includes the towns of Portland and Austen, and the villages of Brier Creek, Buckhannon, Crone (phonetic), and Austen. Thank you for providing us with this opportunity to share our thoughts on Con Edison's latest proposed rate increase.

I'm here today to voice the frustration of thousands of constituents in my district who have had enough with Con Edison. Already excessively high electricity, gas, and

delivery rates, coupled with terrible customer service and errors in billing, have reached a breaking point for constituents. Unfortunately, Con Edison is able to get away with these types of practices because they are a sanctioned monopoly. The nine million customers that Con Edison serves have no other option for electricity and gas.

Unlike almost every other expense in people's lives, electricity and gas are essential, non-optional services. People need to turn on the lights in their homes, and they need to keep their homes to a safe temperature. And unlike most other things people purchase, they have no other option but to obtain electricity and gas from Con Edison.

These facts, coupled with the historic burden people are facing on their finances, require the PSC to apply strict scrutiny when reviewing Con Edison's request to increase electricity and gas rates by 11.4 percent and 13.3 percent respectively. In just one year, double digit increases in one year.

We know that the hard-working, rank-and-file, unionized employees at Con Edison are not receiving double digit increases in their salaries in

one year. Any rate increase should not be approved unless Con Edison can meet a high burden of proof and show to the public that they have exhausted every other option. We know from their own filings and admissions that this is not the case. Every year, Con Edison continues to increase the dividend that they have paid out to shareholders, and one of the justifications used for the proposed rate increase is an additional increase to that dividend for shareholders once again. While Con Edison sees record profits, customers are struggling to make ends meet. Many are living paycheck-to-paycheck and making difficult decisions about what to pay first.

I urge you not to approve rate increases that will be going to increase dividends for shareholders on the backs of hard-working people. On the Con Edison website, under investor relations, they boast, "Con Edison has increased dividends for 46 consecutive years."

May I make a modest proposal and say that 2026 is the year the dividend finally stays flat? How can we possibly approve another dividend increase when we know how much people are struggling?

There were many years in the 1990s, 2000s, and 2010s that Con Edison only increased the dividend by half of a cent per share. But over the last few years, they have been increasing the dividend by a full two cents per share or more annually, a full 300 percent increase from past practice, showing just how well the company's profits are doing. Given that Con Edison provides an essential service, and we have allowed them a monopoly over providing this service, we need to strictly scrutinize any rate increase they propose.

It is my opinion that they have not met the burden of proof to justify their proposed increase. Con Edison's customers are making tough decisions on finances, figuring out where to cut costs just to get by. Con Edison should be doing the same, rather than resorting to squeezing hard-working people more and more during tough times. I urge the PSC to reject Con Edison's proposal outright. Thank you.

A.L.J. COSTELLO: Thank you. Our next speaker is Gennaro Dominguez. I think you said your name before.

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MR. DOMINGUEZ: My name is Genaro Dominguez, G-E-N-A-R-O. My last name is D-O-M-I-N-G-U-E-Z. Well, I was here for a different reason, but since I'm here, I don't agree with the rate of Con Edison. I have a separate issue, so I guess I have to take it outside and let him know.

A.L.J. COSTELLO: So you have a separate issue?

MR. DOMINGUEZ: Well, it's something about my account.

A.L.J. COSTELLO: Yeah, there's information out on the desk.

MR. DOMINGUEZ: Yes, I will do that. But I just don't agree with Con Edison's rate of your price.

A.L.J. COSTELLO: Okay, thank you. So I just want to say that the comments that you made here this evening are all being transcribed. The court reporter will make a transcript. The transcript will become part of the official record, and will be available on the Department of Public Service website. It usually takes us a week or two to get that process posted.

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Also, if you want to make a comment, but you're unwilling to speak or don't want to speak here today, you can make comments in other ways, as the Commissioner indicated earlier.

You can submit comments on the Department of Public Service's website at www.dps.ny.gov. You can submit comments by regular mail, and you address that to the Honorable Michelle Phillips, Secretary of the Public Service Commission, at 3 Empire State Plaza, New York, 12223. Or you can leave statements orally on the telephone at 1-800-335-2120.

Also, as the Commissioner indicated, there will be a series of public statement hearings that will be held in these cases.

So tomorrow, there will be a hearing at the Brooklyn Borough Hall at 1 and 6 p.m., also at the Westchester County Center in White Plains at 1 p.m. and 6 p.m. Then on Thursday, there will be hearings at the C.W. Mixon Center in Queens, and that will be at 1 p.m. and 6 p.m. And there will also be hearings in the Bronx at the Residence Inn Marriott, (indiscernible), at 1776 Eastchester Road at 1 p.m.

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and 6 p.m.

And then later on in the month on July 22nd and July 23rd, there will be hearings at the Jewish Community Center of Staten Island at 1466 Manor Road. If anybody knows, or you know anybody that may live in those areas, I think we look forward to having people show up and give us comments. With respect to your written comments, regardless of how they were submitted, regardless of how your comments are given, whether oral or written, they are all given the same consideration -- and, as you heard, the Commission finds it very important to hear each and every one of them.

So with that, just because we still haven't had many people here this evening, what we're going to do is we'll offer it again, and I'm going to keep the proceeding open until 7 o'clock. And at that time, if we don't have anybody else that wants to make a statement, we'll close out the hearing this evening.

(Off the record)

(On the record)

A.L.J. COSTELLO: Since we've gone off

the record, nobody else has shown up to make a statement, so I want to thank everyone for being here, and we're going to close the hearing this evening. We'll go off the record.

(The hearing concluded at 7:00 p.m.)

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I, JOHN SHEFFIELD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 14, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 11th day of July, 2025.

JOHN SHEFFIELD, Reporter